BUTHUEL FIWUKA
versus
CBMA ENTERPRISES (PVT) LTD
and
PHARMACISTS COUNCIL OF ZIMBABWE

HIGH COURT OF ZIMBABWE
PHILLIPS J
HARARE, 26, 27 November 2025, 21 January 2026, 04, 05, 25 February 2026,
16 March 2026, 08 June 2026

Opposed Application

A.Mutima for the Plaintiff
T. Tabana and Z. Bofo for the 1st Defendant
No appearance for the 2nd Defendant

PHILLIPS J:

Factual Background

The plaintiff alleges that on 23 September 2024, she visited the first defendant to obtain her prescribed medication, specifically, Sertraline, as part of her treatment for Major Depressive Disorder. The plaintiff avers that her prescription from her psychiatrist clearly instructed a dosage of 150mg once daily for two weeks, however, the first defendant erroneously dispensed a dosage of 150mg three times daily for three weeks. The plaintiff proceeded to take the medication dispensed as per the instructions and the direction of use as given by the first Defendant. As, a result, the plaintiff experienced detrimental health issues. The Plaintiff alleges that she has suffered severe symptoms including nausea, tremors, inability to walk, heart palpitations and emotional instability due to the sole negligence of the first Defendant.

The plaintiff avers that she was taken to Parirenyatwa General Hospital, where she received urgent medical treatment for Serotonin Syndrome, a potentially life-threatening condition. The plaintiff also avers that she incurred hospital costs and claims special damages in the sum of US$3000 and she was given medication and drugs costing US$600. The plaintiff indicated that as a result of the overdose, a medical practitioner instructed her to get a special treatment, with an estimated costs of US$3000. Further, the plaintiff quantified general damages resulting from excruciating pain and suffering as a result of the first defendant's negligence at an estimated sum of US$20000. The plaintiff avers that her recovery has been prolonged, impacting on her education which could potentially force her to repeat her attachment year. The plaintiff submitted that at the time of the negligence she was employed as an attaché, and that she has been unable to return to her normal day to day work or look for new employment. Thus, the plaintiff claims for estimated earnings of US$4000 per year.

The plaintiff alleges that due to first defendant's negligence she's currently being treated for diabetes yet prior to the overdose she had no history of diabetes, as a result she has incurred and continues to incur medical and treatment expenses and claims for special damages in the sum of US$10000 the plaintiff indicated that she is in continuous need of psychiatric treatment to the next year amounting to US$10000 due to mental health complications and suffering from Serotonin Syndrome as a result of first defendant's negligence.

On the other hand, the first Defendant denies the Plaintiff's allegations and their position is that the medication that was dispensed to the Plaintiff was in terms of the prescription by her psychiatrists, thus the health issues faced by the Plaintiff cannot be attributed to the first defendant. The first defendant denies that it was negligent and that the medication dispensed caused the plaintiff to suffer damages.

The second Defendant neither supports nor opposes the Plaintiff's claim or the relief sought against the first defendant. The second Defendant denies any liability for the acts or omissions of the first defendant and it will abide by the order of the court.

Relief Sought

1. *The first defendant pays damages in the total amount of US$50 600.00, being general and special damages broken down as follows:*

i. *Medical Expenses incurred due to the overdose*

ii. Hospital Costs: US$3,000.00

iii. Drugs: US$600.00

iv. Special Treatment: US$3,000.00

v. Current Drugs Treatment and Future Treatment: US$10,000.00

vi. Psychiatric Treatment for the next year: US$10,000.00

vii. Pain and Suffering as a result of the overdose: US$20,000.00

viii. Loss of Earnings:US$4,000.00

2. Costs of suit on an attorney client scale.

On 26 November 2025, the plaintiff made an application to amend her pre-trial conference minute, which had initially recorded that she would call two witnesses. The plaintiff sought to increase that number to three witnesses besides herself, asserting that no prejudice would result. The first defendant opposed the application and made its submissions essentially complaining that the plaintiff was ambushing them. The court's position was that it is bound by the order of Judge CHIKOWERO J, and had accordingly dismissed the Plaintiff's application to amend.

Thereafter, the Plaintiff in terms of rule 94(2) sought leave to appeal against the court's refusal of her application to amend the Joint Pre-Trial Conference Minute. Following some discussions between the parties, they reached a position by consent to allow the plaintiff's other two witnesses to give evidence and the plaintiff withdrew her application for leave to appeal.

On 4 February 2026, the first defendant's legal practitioners made submissions explaining the plaintiff's absence for trial continuation that revealed the fact that the plaintiff is a *peregrinus.* The first defendant then made an application in terms of rule 75 (1) for the plaintiff to pay security for costs. The first defendant argued that in her declaration the plaintiff did not declare that she is a *peregrinus*. The first defendant argued that until such time the plaintiff pays the security for costs to the registrar, these proceedings ought to be stayed. The first defendant's position was that because they are not in agreement regarding the quantum of the costs, it was proposed that the Registrar determines the security for costs upon the first defendant, furnishing the proposed amount within seven days.

After some arguments between the parties, the plaintiff made another application in terms of Rule 48(13) for leave of the court to deliver a written summary of expert opinion outside of

the rules that mandate that the summary or opinion ought to have been brought not less than ten days before the trial commencement. The plaintiff presented to the court facts that they had struggled to get expert witnesses when they started this case and expressed that doctors were refusing to give their testimony but, they recently secured two expert witnesses; Dr Anesu Chinoperekwi (specialist physician) and Dr Simbarashe Pfumojena. In their summary of evidence, the plaintiff claimed to have mentioned that they would provide expert witnesses, an assertion that the first defendant disagreed with. The plaintiff submitted that there is no likelihood of prejudice that defendant will suffer because they had already mentioned it in their summary of evidence. The predicament plaintiff faced was that she was out of time. The plaintiff submitted that fairness outweighed the likely prejudice to the defendant and in any event, there will be minimal prejudice. Further, the plaintiff submitted that this claim is for professional negligence so the court will need to refer to expert opinions in order to arrive at a just decision.

In response the first defendant was opposed to this application citing prejudice, because they were not aware what the summary of evidence contained since it had not been presented to them. The first defendant submitted that notice should have been given to a party who is intended to receive it and given time to apply their mind and decide whether it should be admitted. The first defendant also brought it to the court's attention that plaintiff's summary of evidence only makes mention of the plaintiff's usual doctor and the fact that the plaintiff was treated at Parirenyatwa Hospital. The first defendant submitted that the plaintiff's application is predicated on false roots. After all the arguments, this court allowed the plaintiff's application.

On 25 February 2026, the Registrar had determined security for costs in the sum of US$4000. The plaintiff had not indicated the manner in which this amount will be paid. The first defendant indicated to the court that they do not want a situation where the proceedings continue and the judgment is in their favour and costs cannot be paid. On the other hand, the plaintiff submitted to the court that she would like to exercise their right in terms of Rule 75(3), to request the Registrar for a review on the quantum of security for costs. In light of these submissions, the matter was postponed on that particular day.

On 16 March 2026, the plaintiff approached the court the day on which this matter was set down for trial seeking the leave of this court to withdraw the case. The plaintiff indicated to the court that she is not in a position to afford the amount set by the Registrar for security for

costs, she is a full-time student waiting for graduation end of June 2026. The plaintiff also mentioned to the court that she is unemployed, as such she cannot afford to pay the security for costs amount of US4000 and wishes to pursue an out of court settlement. The plaintiff argued that it is within the court's discretion to compel a party to tender costs or apply for the court to waive the costs as plaintiff is financially incapacitated, alternatively, if the court is not inclined to grant the withdrawal, the plaintiff's application was for the matter to be removed from the roll pending their court application in HCH1229/26 for review of the security for costs. The plaintiff also relied on rule 75(4) of the High Court Rules, asserting that there had not been unreasonable wasted time since 24 February 2026, that it had been 15 days since the determination of costs, and the court must consider that the plaintiff is a *peregrinus* who has to travel from Abuja, Nigeria to get a notary and she only gave instructions on 13 March 2026. The plaintiff was opposed to having the matter dismissed as argued by the first defendant considering that there is a pending application seeking to review the amount by the Registrar.

The first defendant was opposed to the application on the basis that defendant had not given consent to the withdrawal, he argued that a party cannot withdraw without the consent of the other party or leave of the court. In this case we were mid-way a trial so the Plaintiff cannot withdraw the matter at this stage. The first defendant argued that what the plaintiff is doing amounts to an abuse of court processes and it is not in the interest of justice for the plaintiff to withdraw now. It was also submitted that if the plaintiff is unable to finance, she ought to be dismissed for want of prosecution. Further, the first defendant argued that the determination of costs was made on 24 February 2026, that the plaintiff sat on her laurels and then when she noticed that the date was approaching, she then sought to withdraw the matter. The first defendant averred that the disadvantage of such a withdrawal is that there is no finality in litigation, it leaves room for plaintiff to relodge new summons thereby overwhelming the court with many matters. The first defendant also resisted to have the matter removed from the roll because it will still remain pending with this court and as such the matter needs to be finalised.

The Law and Analysis

In this case, the court has experienced quite a few applications at the request of the Plaintiff. On the first day of trial there was an application to amend the Joint Pre-Trial Conference Minute, there has been an application for leave to appeal (which was then done away

with through the consent of the parties), there has been an application for leave to file expert opinions, there is now this application to withdraw and a parallel application for review of the amount set by the Registrar for security for costs.

This court is inclined to agree with the first defendant's submission in opposing leave of the court to deliver a written summary of expert opinion which had been sought by the plaintiff, given that by the plaintiff's own admission these medical practitioners only recently became available. It was clearly obvious that the two expert doctors were a new development, that occurred post-trial commencement. The court in *Frank Buyanga Sadiqi* v *Chantelle Tatenda Muteswa & Ors* HH281/20, stated as follows:

> "A party that conceals material information from the court must be unworthy of its protection or assistance. If you seek relief, you must take the court into your confidence laying bare all the relevant facts of the matter."

It is not apparent how the plaintiff's legal practitioners had envisaged the conduct of this trial, but it certainly looks like the plaintiff is building the case as it goes. The court has endured considerable inconvenience owing to the plaintiff's serious disorganization. Nevertheless, the court was mindful of the plaintiff's plight and in the interests of justice accepted that the proposed expert opinion evidence would be helpful to the court in arriving at a correct and just decision owing to the science involved.

The issue of security of costs has always been a subject in this jurisdiction. In terms of rule 75(4) of the High Court Rules:

> "The judge or court may, if the security is not given within a reasonable time, on application dismiss any proceedings instituted or strike out proceedings or make such other order as to it may seem fit."

In *Zendera* v *Mcdade & Anor* 1985 (2) p 18 20A-D, the court held as follows:

> "The issue relating to the furnishing of security for costs by a plaintiff who is a peregrinus is discussed by the learned authors of The Civil Practice of the Superior Courts of South Africa 3rd ed at p 251. There, the learned authors had this to say:
>
> "A peregrinus who initiates proceedings in our courts must, as a general rule, give security to the defendant for his costs, unless he has within the area of the jurisdiction of the court, immovable property with a sufficient margin unburdened to satisfy costs which may arise……. The court, has, however, a discretion in exceptional cases but should exercise its discretion sparingly."

From the beginning the plaintiff has always known that she is a *peregrinus*, it is common cause that *peregrini* ought to deposit security for costs. When a person decides that they wish to approach the court, they must be prepared to meet the costs of such, especially when you are also going to be making many interlocutory applications as well. I find that the plaintiff has been litigious to her own peril. It would not be in the interest of justice to keep stringing the defendant along to the whims of the plaintiff. The plaintiff has offered the first defendant an amount of US$800 in the face of US$4000 that had been set. The plaintiff had been aware of the USD$4000 for 15 days when she decided that she was going to withdraw. Considering the totality of the plaintiff's conduct , this 15 day period can certainly be considered unreasonable.

Further, with regard to the application to withdraw the matter, it must be noted that the case had been set down for trial and the plaintiff had already started giving evidence. In her own submissions, the plaintiff conceded that such an application requires either a party's consent or the leave of the court may be obtained.

The principle that a party cannot withdraw at will a matter that has been set down for hearing is set out as follows in *Meda* v *Sibanda & Others* 2016 (2) ZLR 232 (CC) at 234F-235B:

> "While parties may at any time before a matter is set down, withdraw a matter, with a tender of costs, the same does not hold true for a matter that has already been set down for hearing. Once a matter is set down, withdrawal is not there for the taking."

Similarly, in *Liberal Democrats & 4 Others* v *President of the Republic of Zimbabwe E.D. Mnangagwa N.O & 4 Others* CC 27/18, the court reaffirmed that:

> "A party cannot withdraw at will if it has not obtained the consent of the other party or the applicant can still seek the leave of the court."

Applying these principles to the present matter, the plaintiff sought to withdraw the matter after trial had commenced, without securing the consent of the defendant and alternatively seeks the leave of this court. In such circumstances, withdrawal is impermissible, the authorities make it clear that once a matter is set down, the court must safeguard the integrity of its processes and also protect the other party from prejudice which may arise. In view of the above, l found it proper to dismiss the matter. It is procedurally defective for a party to seek for a withdrawal where the matter has already been set down.

Disposition

It is accordingly ordered that:

1. This matter be and is hereby dismissed.

2. The Plaintiff is to pay to the costs of suit on a Legal Practitioner and client scale.

PHILLIPS J:……

Jiti Law Chambers, Plaintiff's Legal Practitioners
Tabana and Marwa Legal Practitioners, First Defendant's Legal Practitioners
Honey and Blanckenberg, Second Defendant's Legal Practitioners